



IN THE COURT OF APPEAL
CRIMINAL DIVISION

Royal Courts of Justice
The Strand
London
WC2A 2LL

ON APPEAL FROM THE CROWN COURT AT NOTTINGHAM
(HIS HONOUR JUDGE MICHAEL AUTY KC) [T20207305]

Case No 2024/03262/A5

[2025] EWCA Crim 612

Friday 11 April 2025

B e f o r e:

LORD JUSTICE STUART-SMITH

MR JUSTICE BRYAN

HIS HONOUR JUDGE MANSELL KC
(Sitting as a Judge of the Court of Appeal Criminal Division)

R E X

- v -

CRAIG MORAN

Mr C Harding and Miss P Rai appeared on behalf of the Appellant

APPROVED JUDGMENT

MR JUSTICE BRYAN:

1. On 16 July 2021, in the Crown Court at Nottingham before His Honour Judge Rafferty KC, the appellant (then aged 39) pleaded guilty to one count of Conspiracy to Transfer a Prohibited Weapon (Count 1), one count of Conspiracy to Supply a Controlled Drug of Class A (Count 2) and one count of Converting Criminal Property (Count 26).

2. On 14 August 2024, in the same court, His Honour Judge Michael Auty KC sentenced the appellant (then aged 42) to 16 years' imprisonment in respect of the Conspiracy to Supply a Controlled Drug of Class A (Count 1); to a consecutive term of eight years' imprisonment in respect of the Conspiracy to Transfer a Prohibited Weapon (Count 2); and to a concurrent term of four years' imprisonment in respect of the Converting Criminal Property (money laundering, Count 26). The total sentence was therefore one of 24 years' imprisonment.

3. The appellant now appeals against sentence by leave of the single judge.

4. We turn to the facts of the appellant's offending. There was a police investigation, known as "Operation Encyclic", into the activities of an Organised Crime Group ("OCG") headed by the appellant and based in the Bestwood area of Nottingham. The OCG's primary business was the large scale supply of Class A drugs, although two of the defendants, Lee Hudson and Dean Hudson were also involved in the production and supply of cannabis.

5. The appellant's OCG conducted business with a Manchester based OCG headed by Jodie Danson. Between September 2017 and September 2018 John Newns, a cousin of Danson and a trusted courier, made 29 journeys in three different vehicles from the North-West to Nottingham to deliver Class A and B drugs or to collect payments. Danson put forward a basis of plea which asserted that he believed that between 30 and 40 kilograms of Class A drugs had been delivered to the appellant.

6. During the course of the investigation, a sawn-off pump action shotgun, two handguns, and 131 rounds of live ammunition were seized in Nottingham. All three firearms had been sourced from Manchester. Danson admitted that he was involved in acquiring the two handguns for the appellant. The sawn-off shotgun was discharged twice in Salford on 9 August 2017, approximately half a mile from Danson's address. On Friday 27 October 2017, the shotgun was recovered from the home of Callum Easom, a drug dealing associate of the appellant. Easom pleaded guilty to possession of that shotgun and was sentenced in 2018 for

it. The shotgun was test fired a number of times and worked normally.

7. The same day that the shotgun was seized by police, the appellant drove to Manchester where he met Danson. The appellant remained in Manchester until the following Monday. The day before the appellant returned, Callum Sims arranged for a Ford B-Max vehicle to be stolen from Nottingham and delivered close to his address in Morrell Bank. On Wednesday 1 November 2017, police recovered the stolen vehicle and found a Belgium manufactured revolver, chambered to fire .320 British shot revolver cartridges, and a Russian manufactured self-loading pistol that had been modified to accept a 9 millimetre short-calibre cartridge. The pistol's firing pin and safety catch assembly were missing. A forensic scientist was able to fire the weapon using a section of nail as an improvised firing pin using 9 millimetre short-calibre cartridges. Officers also found a single unfired live .32 automatic calibre bullet cartridge which contained a jacketed round-nosed bullet. The bullet could not be chambered in the revolver and the forensic scientist was unable to fire it from the adapted pistol. The vehicle also contained 4 kilograms of creatine, often used as a cutting agent for cocaine.

8. Callum Sims' address was searched in March 2018. Inside was a ballistic vest, a CS canister, a gas mask, and several balaclavas.

9. On 11 April 2018, police searched Lee Hudson's home. They found a sophisticated cannabis farm in the loft, 131 bullets in two locations, two encrypted EncroChat mobile telephones, and a kilogram of cannabis that Danson had admitted supplying to the appellant's OCG.

10. Following Lee Hudson's arrest, a covert listening device in the appellant's vehicle recorded a conversation between him and Dean Hudson. The appellant had been concerned about whether something specific had been discovered in the search. Dean Hudson told the appellant that the unidentified object had been moved the previous evening.

11. Between August 2017 and August 2018, the appellant and Danson were in regular telephone contact. They used both mobile telephones and encrypted EncroChat mobile telephones to communicate. They met regularly in Manchester, Nottingham, Uttoxeter and on occasion in Wigan. In some of these meetings other Manchester based criminals with drug dealing histories were present.

12. The telephone communications continued after Jodie Danson was recalled to prison on 23 May 2018. While in custody, Danson used five different handsets to continue running his drug supply business. He stayed in contact with John Newns who made a further five trips to Nottingham after Danson's recall. These trips may not all have been drug related.

13. Danson explored the possibility of accessing an EncroChat device in prison. He also instructed Natalia Woszczyk and Craig Bailey to carry out tasks for him. On two occasions in July and early August 2018 Woszczyk met the appellant in Uttoxeter. Bailey was in communication with the appellant on the evening of 19 July 2018 after police stopped Callum Sims on the outskirts of Nottingham. He was found to be in possession of an EncroChat mobile telephone, 4 kilograms of cocaine with a purity of between 78 and 85 per cent (wholesale value of £120,000 and street value of £320,000), and 2 kilograms of heroin with a purity of between 60 and 69 per cent (wholesale value £40,000 and street value of £200,000). Lee and Dean Hudson had been waiting at their parents' home to take delivery of the drugs.

14. On 11 August 2018, Darren Bexon and another male drove the appellant to St Helens. The following day the appellant travelled to Spain via Dover. While he was in Spain a female associate of Lee Hudson and a man named Jamie Kenny wired relatively small amounts of cash to the appellant.

15. In September 2018, the appellant was subject to a serious assault in Marbella. He was beaten around the head, stabbed, shot in both legs, had the tendon in his right hand slashed, and his cheeks slit from his mouth up towards his ear. The appellant later left Spain and travelled to Dubai. In early 2020 he was detained by authorities in the United Arab Emirates and was extradited back to the United Kingdom towards the end of July 2020. The appellants associates continued to run the drug operation while he was abroad.

16. The appellant had 13 convictions for 52 offences spanning from 17 February 1995 to 7 June 2018. His relevant convictions included offences of possession of a controlled drug of Class B (in 1999), conspiracy to commit robbery with a firearm/imitation firearm (in 2005), and conspiracy to pervert the course of justice (in 2005).

17. The appellant stood to be sentenced for three offences: first, conspiracy to transfer a prohibited weapon (Count 1); secondly, conspiracy to supply Class A drugs (Count 2); and thirdly, converting criminal property (Count 26). He had entered guilty pleas to each of those

offences, on first arraignment, on a "full facts" basis. The sentences passed followed a lengthy sentencing hearing for the appellant and nine of his co-defendants.

18. There was no challenge to the categorisation of the offending under the respective guidelines. The conspiracy to transfer firearms was high culpability and Category 2 harm (a "leading role" as the leader of a group activity and weapons obtained in expectation of substantial financial or other advantage, namely securing and advancing the appellant's Class A drug dealing business), with a starting point of 14 years' imprisonment and a range of 12 to 18 years' imprisonment.

19. The conspiracy to supply Class A drugs was a "leading role" (directing and organising the buying and selling of the drugs on a commercial level, with substantial links to, and influence on, others in the chain, and an expectation of substantial financial gain), and Category 1 harm, with a starting point of 14-plus years' imprisonment, and a range of 12-plus to 16-plus years' imprisonment. Reference was also made to the relevant authorities on large scale drugs conspiracies of this type (and the greater sentences that might be imposed in such context).

20. The money laundering (Count 26) was a "leading role" in converting the monies he received over a substantial period of time from the appellant's drug dealing activities, and Category 3 harm (£500,000 to £2 million), with a starting point of seven years' imprisonment based on £1 million, with a category range of five to eight years (with the possibility of upward adjustment to the top of the range or outwith the range, having regard to the underlying offending).

21. On behalf of the appellant it was urged that very generous credit should be given for the guilty pleas, in the particular circumstances of the case, which included that the appellant's early guilty pleas on a "full facts" basis, which saved considerable court time by allowing there to be a far less complex and more streamlined trial of his co-defendants. The appellant also placed reliance upon his extended detention in Dubai, which was a consequence of the Covid pandemic and grounding of all flights (in circumstances where he had not opposed extradition), and delays that ensued through no fault of his own. It was submitted that it was appropriate to impose concurrent sentences in respect of all of the offences, given that they were committed over the same time period and arose out of the same conduct, and that the court should keep the principle of totality in the forefront of its mind when calculating

appropriate sentences.

22. In his sentencing remarks, the judge indicated that he took the Sentencing Guidelines as a starting point, but that the relevant Drug Guideline in relation to Count 2 provided that where there was an operation on the highest scale, sentences of 20 years and above may be appropriate. He also referred to the relevant authorities in that regard. He indicated that had each offence been sentenced in isolation (i.e. on a stand-alone basis, as he made clear on page 9 of his sentencing remarks), he would have passed sentences in relation to Count 1, of 15 years' imprisonment; on Count 2, of 23 years' imprisonment; and on Count 26, of eight years' imprisonment, respectively. The judge approached sentencing on the premise that the sentences for Counts 1 and 2 should be consecutive, and that the sentence for Count 26 should run concurrently with the other sentences. He treated that as an aggravating factor on Count 2, as he stated at page 10 of his sentencing remarks. Next, "making a significant adjustment to the overall sentence" to reflect totality, he arrived at a total sentence of 36 years' imprisonment. Finally, the judge noted that the appellant had "played fair with the court in tendering his pleas at an early stage" and concluded that in all the circumstances it was appropriate to give the appellant a full one-third credit for such guilty pleas, which resulted in a final total sentence of 24 years' imprisonment.

23. The grounds of appeal against sentence that are advanced by Mr Harding on behalf of the appellant are:

(1) That the judge took too high a starting point in respect of the appellant on Counts 1 and 2;

(2) That the judge erred in his approach to the structure of the sentence, and rather than imposing consecutive sentences for Counts 1 and 2, it would have been more appropriate to impose concurrent terms and to adjust the term on Count 2 to reflect the aggravation inherent in Count 1; alternatively, that insufficient adjustment was made to the consecutive terms to reflect totality; and/or

(3) That the overall sentence of 24 years' imprisonment was manifestly excessive.

Discussion

24. We are grateful to Mr Harding for the quality of his submissions. This was, on any view, very serious offending. We address each of the grounds in turn.

25. On the first ground, and Count 1, it is submitted that in circumstances where the evidence of the prosecution expert accepted that the weapons were incomplete and not in good condition, and it was accepted that the appellant's involvement with sourcing such weapons had been for a very limited period, the judge, in indicating a sentence of 15 years, placed the offence too high within the category range in all these circumstances, given that the starting point for Category 2A is 14 years' imprisonment, with a sentencing range of 12 to 18 years.

26. We cannot accept this submission. The shotgun was operative and it proved possible to fire the pistol. In addition, the judge was sentencing in respect of multiple weapons. A sentence after trial of 15 years' imprisonment, before adjustment for totality to 12 years' imprisonment, (eight years' imprisonment after full credit for guilty plea) was not, in and of itself, manifestly excessive.

27. In relation to Count 2, and whilst there is (and could be) no complaint that the judge chose to go outside the guidelines on Count 2, it is submitted that the stated 23 year starting point was too high in circumstances where the judge repeated that the view of the prosecution expert at trial had been that this was a "mid-table Premier League operation".

28. We disagree. It was entirely appropriate to arrive at a sentence of 23 years' imprisonment in respect of a serious conspiracy to supply Class A drugs of the level under consideration, and for someone in the appellant's position (with the "leading role" as head of the Organised Crime Group). We accordingly do not consider that there is any substance in ground 1.

29. Turning to ground 2, the appellant submits that the judge fell into error when he imposed a consecutive sentence on Count 1. It is submitted that although indicated as distinct offences in separate counts, the Crown's case was that the short-lived transfer of firearms from Manchester to Nottingham was inextricably linked to maintaining protection of the substantial and valuable dealing in Class A drugs; that there was no evidence of the use of these weapons by the Nottingham group; and that it was possible on the Crown's case to

determine that each of the firearms was only in the possession of the Nottingham group for a very short period before being seized by the police, which was right at the start of the date range specified in the indictment.

30. It is pointed out that there was nothing in the evidence from later arrests and seizures, or from the surveillance evidence obtained by the police, to suggest that there had been any further involvement by the appellant in the acquisition or transfer of firearms throughout the rest of the period to March 2019. It is submitted that, in reality, this aspect was a (significantly) aggravating feature of Count 2, but could be shown to have been committed only within the period of Count 2 and arising from the same conduct. This was the submission which the judge accepted on Count 2 in relation to Count 26, and it is said that he should have taken the same approach in respect of Count 1.

31. We do not consider that there is any merit in this point either. The firearms offending is separate serious offending that could, and indeed, should, be reflected in a consecutive sentence. The real gravamen of the appellant's appeal is ground 3 and the question of totality which undoubtably required adjustment to the sentences that would otherwise be passed on individual counts taken in isolation.

32. In this regard the judge clearly recognised, in terms, that had the appellant been convicted of all three counts after trial, he would have been bound to make a significant adjustment to the overall sentence to take into account the principle of totality. It is suggested, however, that the judge fell into error by failing actually to make any significant or sufficient adjustment to the total sentence he reached by ordering the sentences on Counts 1 and 2 to run consecutively.

33. We cannot accept that. We consider that significant, and appropriate, reductions were made to reflect totality. First, the sentence on Count 1 was reduced from 15 years to 12 years. Second, the sentence on Count 26 was reduced from eight years to four years, and ordered to run concurrently. It was treated as an aggravating factor on Count 2 (requiring a modest uplift to 24 years), a total sentence of 36 years before full credit (24 years after such credit).

34. We consider that such a sentence to reflect a catalogue of very serious drugs and firearms offending was not manifestly excessive and, indeed, was a just and proportionate sentence to

reflect the totality of the appellant's offending.

35. Accordingly the appeal against sentence is dismissed.
